



# DAK GURU

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## FR & SR

### Fundamental Rules & Supplementary Rules

*General Rules — An Original Dak Guru Study Booklet*

**For LDCE Inspector of Posts (IP) & PS Group 'B' Examinations**

**Statutory position certified as of June 2026**

*Every provision reproduced verbatim from primary sources • All learning aids are original Dak Guru work*

## How to Use This Booklet

This is an original Dak Guru booklet built on a deliberate two-layer design. The text of every rule is reproduced word-for-word from the official Fundamental Rules, Supplementary Rules and CCS (Joining Time) Rules, 1979 as in force. Wrapped around each rule are Dak Guru's own learning aids — written fresh, in our voice — to help you understand, remember and avoid the traps examiners set.

The grey-ruled  **THE RULE** blocks carry the law and must be learnt as written. Everything in a coloured box is Dak Guru apparatus to aid revision — it explains, it never replaces, the rule.

| Aid                                                                                                                                                                                                                                                                                                | What it gives you                                                                  |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------|
|  <b>CONCEPT</b>                                                                                                                                                                                                   | Plain-language framing of what the rule does, before the legalese.                 |
|  <b>THE RULE</b>                                                                                                                                                                                                  | The verbatim provision with its official numbering and a source-and-date citation. |
|  <b>WHAT CHANGED</b>                                                                                                                                                                                            | Recent amendments — old position, instrument and date, new position.               |
|  <b>REMEMBER</b>                                                                                                                                                                                                | An original memory hook for lists, ceilings and time-limits.                       |
|  <b>COMPARE</b>                                                                                                                                                                                                 | Side-by-side tables separating look-alike provisions.                              |
|  <b>PYQ</b> /  <b>FREQ</b> /  <b>TRAP</b> | Exam flags: previous-year points, high-yield items, and classic confusions.        |
|  <b>AT A GLANCE</b> /  <b>SELF-CHECK</b>                                                                                     | A 30-second recap opening each Part and self-test questions closing it.            |

### **CONCEPT**

Currency promise: All statutory provisions in this booklet were verified against primary sources and certified current as of June 2026. Any point that could not be conclusively confirmed is flagged  inline. Monetary ceilings and amendment-sensitive rules were live-verified; where a figure rests on a specific Office Memorandum, its number and date are cited.

## PART A — FUNDAMENTAL RULES (FR)

The Fundamental Rules regulate the pay, leave, joining time, foreign service, suspension and retirement of Government servants whose pay is debitable to the civil estimates. They are made by the President under the proviso to Article 309 of the Constitution and bind the entire civil service of the Union except where expressly excepted.

### Chapter I — Extent of Application (FR 1 to FR 8)

|  AT A GLANCE |                                                                                        |
|-----------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------|
| FR 1                                                                                          | Title — the “Fundamental Rules”; in force from 1 January 1922.                         |
| FR 2                                                                                          | Apply to all Government servants whose pay is debitable to civil estimates.            |
| FR 3                                                                                          | Do not apply where service conditions are governed by Army/Marine/other special rules. |
| FR 6                                                                                          | Government may delegate its powers; the rule-making power itself is the President's.   |
| FR 7                                                                                          | No power exercised/delegated without prior consultation with the Ministry of Finance.  |
| FR 8                                                                                          | The power to interpret the rules is reserved to the President.                         |

#### FR 1 — Short title and commencement

##### CONCEPT

Establishes the name of the rules and the date they took effect. A simple recall point: the FRs are old — they commenced on 1 January 1922 — yet remain the backbone of service regulation, continually amended rather than replaced.

##### THE RULE — FR 1

These Rules may be called the Fundamental Rules. They shall come into force with effect from the 1st January, 1922.

*🔗 Fundamental Rules, FR 1 (Ministry of Finance) — in force w.e.f. 01.01.1922.*

## FR 2 — Application

### THE RULE — FR 2

Subject to the provisions of rule 3, these rules apply to all Government servants whose pay is debitable to the Civil Estimates and to any other class of Government servants to which the President may, by general or special order, declare them to be applicable.

*🏛️ Fundamental Rules, FR 2.*

**⚠️ TRAP** FR 2 fixes the field of application by the source of pay (Civil Estimates), not by the cadre name. A servant paid from Defence or Railway estimates is outside the FRs unless specially extended.

## FR 3 — Saving of special rules

### THE RULE — FR 3

These rules do not apply to Government servants whose conditions of service are governed by Army Regulations or Marine Regulations or by any rules expressly made by the President in this behalf.

*🏛️ Fundamental Rules, FR 3.*

## FR 6, FR 7 & FR 8 — Delegation, consultation and interpretation

### CONCEPT

These three rules together fix who controls the FRs. Powers may be delegated (FR 6), but never exercised or delegated without first consulting Finance (FR 7), and the final word on what a rule means rests with the President alone (FR 8).

### THE RULE — FR 6

The Government may, by general or special order, delegate to any of its officers, subject to any conditions which it may think fit to impose, any power conferred upon it by these rules with the exception of the powers to make rules under rule 6 and to interpret these rules.

*🏛️ Fundamental Rules, FR 6.*

### THE RULE — FR 7

No powers may be exercised or delegated under these rules except after consultation with the Ministry of Finance. It shall be open to that Ministry to prescribe, by general or special order, cases in which its assent may be presumed to have been given.

🔑 *Fundamental Rules, FR 7.*

#### 📖 THE RULE — FR 8

The power of interpreting these rules is reserved to the President.

🔑 *Fundamental Rules, FR 8.*

#### 🔑 REMEMBER

“Finance First, President Final” — FR 7 needs the Ministry of Finance before any power is used (consultation); FR 8 leaves interpretation to the President alone.

#### ✅ SELF-CHECK

- Q1.** From which date did the Fundamental Rules come into force?
- Q2.** What single test decides whether a Government servant is governed by the FRs under FR 2?
- Q3.** Two powers can never be delegated under FR 6 — name them.
- Q4.** Whose prior consultation is mandatory before any power under the FRs is exercised or delegated?

#### Answers:

- 1 January 1922 (FR 1).
- Whether the servant's pay is debitable to the Civil Estimates (FR 2); cadre name is irrelevant.
- The power to make rules under FR 6, and the power to interpret the rules — both are retained (FR 6 read with FR 8).
- The Ministry of Finance (FR 7).

## Chapter II — Definitions (FR 9)

#### 🔑 AT A GLANCE

|             |                                                                                          |
|-------------|------------------------------------------------------------------------------------------|
| <b>Duty</b> | Includes probation/apprenticeship (if confirmed) and joining time; may include training. |
| <b>Lien</b> | The title to hold a regular post substantively — only a right, not the post itself.      |
| <b>Pay</b>  | Basic pay + special/overseas/personal pay + emoluments specially classed as pay.         |
| <b>Fee</b>  | Payment from a source other than the Consolidated Fund of India (sub. (6-A)).            |

|                    |                                                                            |
|--------------------|----------------------------------------------------------------------------|
| <b>Honorarium</b>  | Payment from the Consolidated Fund for occasional/special work (sub. (9)). |
| <b>Tenure post</b> | A permanent post not to be held by one person beyond a limited period.     |

### **CONCEPT**

FR 9 is the dictionary of the entire FR&SR scheme — almost every later rule turns on a term defined here. Examiners test the fine distinctions: pay versus emoluments, fee versus honorarium, lien versus the post itself, and what counts as “duty.” Learn the exact wording, because the trap usually lies in a single qualifying phrase.

## **FR 9(6) — Duty**

### **THE RULE — FR 9(6)**

Duty includes —

- (a) service as a probationer or apprentice, provided that such service is followed by confirmation;
- (b) joining time.

A Government servant may be treated as on duty during a course of instruction or training, and (in the case of one who is selected for training in a foreign country) for the period spent in such training.

*🔑 Fundamental Rules, FR 9(6).*

**⚠️ TRAP** Probation counts as duty only if it is followed by confirmation. If a probationer is discharged without confirmation, that period is not “duty” for the purposes of the FRs.

### **REMEMBER**

Duty = “P-A-J” — Probation (if confirmed), Apprenticeship (if confirmed), and Joining time; training is duty only when so treated.

## **FR 9(13) — Lien**

### **CONCEPT**

Lien is one of the most misunderstood terms. It is the title or right of a Government servant to hold substantively a permanent (or tenure) post to which he has been appointed substantively — it is the right to the post, not the post itself. A servant

carries his lien through leave, deputation and suspension, and loses it only on the events the rules specify.

#### THE RULE — FR 9(13)

Lien means the title of a Government servant to hold on a regular basis a post, including a tenure post, to which he has been appointed on a regular basis and on which he is not on probation; and the right of a Government servant to hold a lien against a post shall be subject to and regulated by such orders as the President may, from time to time, issue.

*📖 Fundamental Rules, FR 9(13), as amended.*

### FR 9(21) — Pay

#### THE RULE — FR 9(21)

Pay means the amount drawn monthly by a Government servant as —

- (a)(i) the pay, other than special pay or pay granted in view of his personal qualifications, which has been sanctioned for a post held by him substantively or in an officiating capacity, or to which he is entitled by reason of his position in a cadre; and
- (ii) overseas pay, special pay and personal pay; and
- (iii) any other emoluments which may be specially classed as pay by the President.

*📖 Fundamental Rules, FR 9(21).*

| Look-alike term      | What it is (FR 9)                                                                           | Key distinguisher                                 |
|----------------------|---------------------------------------------------------------------------------------------|---------------------------------------------------|
| Special pay (25)     | Addition to pay for specially arduous duties or extra responsibility.                       | Attaches to the post / additional responsibility. |
| Personal pay (23)    | Additional pay to protect from loss of substantive pay on revision, or on personal grounds. | Attaches to the person; protective in nature.     |
| Presumptive pay (24) | Pay one would draw if holding the post substantively and performing its duties.             | Hypothetical / reference pay.                     |

|                      |                                                    |                                         |
|----------------------|----------------------------------------------------|-----------------------------------------|
| Substantive pay (28) | Pay drawn on account of a post held substantively. | Flows from the substantive (lien) post. |
|----------------------|----------------------------------------------------|-----------------------------------------|

🔗 All four are defined in FR 9; the column distinguishers are Dak Guru's own analysis for revision.

📌 **FREQ** Non-Practising Allowance (NPA) to eligible medical posts is admissible at 20% of basic pay, and Basic Pay + NPA must not exceed the pay of a Cabinet Secretary level post. Treat NPA as an addition governed by separate DoE/CPC orders, not as part of the FR 9(21) definition itself.

### FR 9(6-A) Fee and FR 9(9) Honorarium

#### 📖 THE RULE — FR 9(6-A) & 9(9)

Fee means a recurring or non-recurring payment to a Government servant from a source other than the Consolidated Fund of India, whether made directly to the Government servant or indirectly through the intermediary of Government.

Honorarium means a recurring or non-recurring payment granted to a Government servant from the Consolidated Fund of India as remuneration for special work of an occasional or intermittent character.

🔗 Fundamental Rules, FR 9(6-A) and FR 9(9).

#### 🔑 REMEMBER

Source decides the name: money from OUTSIDE the Consolidated Fund of India = FEE; money from WITHIN it for occasional work = HONORARIUM. (FR 9(6-A) vs 9(9).)

#### ✅ SELF-CHECK

- Q1. Is probation "duty" under FR 9(6)? State the condition.
- Q2. Lien is the title to hold which kind of post, and on what basis?
- Q3. A payment received by a Government servant from a private institution for a lecture — fee or honorarium?
- Q4. Which two pays attach to the person rather than the post?

#### Answers:

1. Yes, but only if such service as a probationer is followed by confirmation (FR 9(6)(a)).
2. A post held on a regular basis (permanent or tenure) to which he is appointed regularly and is not on probation (FR 9(13)).
3. Fee — the source is outside the Consolidated Fund of India (FR 9(6-A)).

4. Personal pay (protective, FR 9(23)) and — in its personal-qualifications limb — special pay; presumptive and substantive pay flow from the post.

### Chapter III — General Conditions of Service (FR 10 to FR 18)

|  AT A GLANCE |                                                                                               |
|-----------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------|
| FR 10                                                                                         | Medical certificate of health essential before first appointment.                             |
| FR 13                                                                                         | When a Government servant retains his lien on a post.                                         |
| FR 14                                                                                         | When and how a lien is suspended or terminated.                                               |
| FR 15                                                                                         | President's power to transfer a Government servant from one post to another.                  |
| FR 17                                                                                         | Pay and allowances accrue from the date of taking charge; absence without authority bars pay. |
| FR 18                                                                                         | Maximum period of continuous absence on leave (or otherwise) before the post may be filled.   |

#### FR 10 — Medical certificate of fitness

##### THE RULE — FR 10

Except as provided by this rule, no person may be substantively appointed to a permanent post in Government service unless he produces a medical certificate of health. It shall be in the power of the Government, however, to make exceptions in individual cases or in respect of any specified class of Government servants.

 *Fundamental Rules, FR 10.*

#### FR 13 — Retention of lien

##### CONCEPT

FR 13 lists the situations in which a Government servant keeps his lien even while not physically holding the post — the lien is a thread that survives leave, deputation/foreign service and suspension. Knowing what does NOT break a lien is the high-value point.

#### THE RULE – FR 13

Unless his lien is suspended under rule 14 or transferred under rule 14-B, a Government servant holding substantively a permanent post retains a lien on that post —

- (a) while performing the duties of that post;
- (b) while on foreign service, or holding a temporary post or officiating in another post;
- (c) during joining time on transfer to another post, unless he is transferred substantively to a post on lower pay, in which case his lien is transferred to the new post from the date on which he is relieved of his duties in the old post;
- (d) while on leave; and
- (e) while under suspension.

*🔑 Fundamental Rules, FR 13.*

#### REMEMBER

Lien survives “FLOATS” — Foreign service, Leave, Officiating/temporary post, And Transfer joining-time, Suspension. None of these breaks the lien.

#### TRAP

A lien is NOT retained where the Government servant proceeds on immediate absorption to a post outside his cadre, or acquires a lien on a permanent post outside the cadre on which he stands confirmed. Resignation (including technical resignation) terminates the lien on the old post.

### FR 15 — Transfer

#### THE RULE – FR 15(A)

The President may transfer a Government servant from one post to another; provided that, except (1) on account of inefficiency or misbehaviour, or (2) on his written request, a Government servant shall not be transferred substantively to, or, except in a case covered by rule 49, appointed to officiate in, a post carrying less pay than the pay of the permanent post on which he holds a lien.

*🔑 Fundamental Rules, FR 15(a).*

★ **PYQ** The bar on transfer to a lower-paid post is lifted in only two situations — inefficiency/misbehaviour, or the servant's own written request. This pair is a recurring objective point in LDCE papers.

## FR 17 — Drawal of pay and allowances; unauthorised absence

### THE RULE — FR 17(1) & 17(2)

(1) Subject to any exceptions specifically made in these rules and to the provisions of sub-rule (2), an officer shall begin to draw the pay and allowances attached to his tenure of a post with effect from the date when he assumes the duties of that post, and shall cease to draw them as soon as he ceases to discharge those duties.

(2) Notwithstanding anything contained in these rules, where an officer absents himself from duty without any authority, he shall not be entitled to any pay and allowances during the period of such absence.

📖 *Fundamental Rules, FR 17(1) and (2).*

### THE RULE — FR 17-A — EFFECT OF UNAUTHORISED ABSENCE

The period of unauthorised absence —

(i) in the case of an employee who is absent in connection with a strike which is illegal, shall be deemed to cause an interruption or break in the service of the employee, unless otherwise decided by the competent authority for the purpose of leave, increment, etc.;

(ii) in the case of an employee who, after a period of authorised leave of absence, remains absent unauthorisedly, or who deserts the post, shall be deemed to cause an interruption or break in service, unless the competent authority otherwise decides.

📖 *Fundamental Rules, FR 17-A.*

## FR 18 — Maximum period of continuous absence

### THE RULE — FR 18

Unless the President, in view of the exceptional circumstances of the case, otherwise determines, after five years' continuous absence from duty, elsewhere than on foreign service in India, whether with or without leave, a Government servant ceases to be in Government employment.

📖 *Fundamental Rules, FR 18.*

### REMEMBER

FR 18 ceiling = FIVE YEARS of continuous absence from duty (other than foreign service in India), with or without leave — beyond it, employment ceases unless the President decides otherwise.

### SELF-CHECK

- Q1.** Name three situations in which a lien is retained under FR 13.
- Q2.** Under FR 15, in which two cases may a servant be transferred to a lower-paid post?
- Q3.** What is the maximum continuous period of absence (other than foreign service in India) under FR 18?
- Q4.** Does unauthorised absence carry pay under FR 17?

#### Answers:

- Any three of: while performing the post's duties; on foreign service / officiating / temporary post; during transfer joining time; on leave; under suspension (FR 13(a)–(e)).
- (1) On account of inefficiency or misbehaviour; (2) on the servant's own written request (FR 15(a)).
- Five years of continuous absence; beyond it the servant ceases to be in Government employment unless the President determines otherwise (FR 18).
- No — a period of absence without authority carries no pay or allowances (FR 17(2)).

## Chapter IV — Pay (FR 22 to FR 40)

### AT A GLANCE

|       |                                                                       |
|-------|-----------------------------------------------------------------------|
| FR 22 | Fixation of initial pay on appointment, promotion and re-appointment. |
| FR 24 | Increment ordinarily drawn as a matter of course unless withheld.     |
| FR 26 | Service that counts for increments in a time-scale.                   |
| FR 27 | Premature / advance increments the President may grant.               |
| FR 29 | Penalty of reduction to a lower stage in a time-scale.                |
| FR 35 | Ceiling on officiating pay; FR 36 acting (officiating) arrangements.  |

## FR 22 — Fixation of initial pay

### CONCEPT

FR 22 is the master rule for pay fixation on first appointment, promotion or re-employment. Under the 7th CPC pay-matrix regime, fixation is read with the CCS (Revised Pay) Rules, 2016 — on promotion the pay is fixed by adding one increment in the lower level and placing the servant at the equal or next-higher cell of the higher level. The servant may opt to have pay fixed either from the date of promotion or from the date of his next increment.

### THE RULE — FR 22(I)

The initial pay of a Government servant who is appointed to a post on a time-scale of pay is regulated as follows:

(a) where a Government servant holding a post in a substantive or temporary or officiating capacity is promoted or appointed in a substantive, temporary or officiating capacity to another post carrying duties and responsibilities of greater importance than those attaching to the post held by him, his initial pay in the time-scale of the higher post shall be fixed at the stage next above the notional pay arrived at by increasing his pay in respect of the lower post by one increment at the stage at which such pay has accrued.

*🔗 Fundamental Rules, FR 22(I)(a)(1), read with the CCS (Revised Pay) Rules, 2016.*

| Option on promotion                   | How pay is fixed                                                                                                       | Effect                                       |
|---------------------------------------|------------------------------------------------------------------------------------------------------------------------|----------------------------------------------|
| From date of promotion                | One increment in the lower level, then fixed at equal/next cell of the higher level.                                   | Increment benefit is immediate.              |
| From the Date of Next Increment (DNI) | Pay fixed first on promotion at the higher level; on the DNI two increments are given in the lower level and re-fixed. | Useful where DNI falls soon after promotion. |

*🔗 Option to be exercised within one month of assumption of charge (CCS (RP) Rules, 2016).  
Dak Guru tabulation.*

### WHAT CHANGED

Pre-2016: increments fell on a single annual date with grade-pay-based fixation under the 6th CPC.

Now (CCS (RP) Rules, 2016): the pay matrix applies, and there are two increment dates — 1 January and 1 July. The date depends on when six months' qualifying service is completed.

Net effect: an employee earns the annual increment on 1 January or 1 July, whichever follows completion of six months at the relevant stage.

 **FREQ** *Two increment dates — 1 January and 1 July — with a minimum qualifying period of 6 months. This 7th-CPC feature is heavily tested.*

## FR 24 — Increment

### THE RULE — FR 24

An increment shall ordinarily be drawn as a matter of course unless it is withheld. An increment may be withheld from a Government servant by the Central Government or by any authority to whom the Central Government may delegate this power under rule 6, if his conduct has not been good or his work has not been satisfactory. In ordering the withholding of an increment, the withholding authority shall state the period for which it is withheld, and whether the postponement shall have the effect of postponing future increments.

 *Fundamental Rules, FR 24.*

| Form of withholding                | What is stopped                                           | Effect on future increments                                         |
|------------------------------------|-----------------------------------------------------------|---------------------------------------------------------------------|
| Withholding the next increment     | Only the immediately next increment, for a stated period. | Future increments may or may not be postponed — the order must say. |
| Withholding with cumulative effect | Increment(s) for a stated period.                         | Postpones all future increments correspondingly.                    |

 *FR 24 requires the order to state the period and whether future increments are postponed.*

## FR 26 — Service counting for increments

### THE RULE — FR 26

The following provisions prescribe the conditions on which service counts for increments in a time-scale:

- (a) all duty in a post on a time-scale counts for increments in that time-scale;

(b) service in another post, other than a post carrying less pay, whether in a substantive or officiating capacity, and periods of deputation or foreign service, count for increments in the time-scale applicable to the post on which the Government servant holds a lien;

(c) all leave except extraordinary leave taken otherwise than on medical certificate, and the period of deputation out of India, count for increments;

(d) joining time counts for increments, where it counts as duty under rule 9(6) and the Government servant was, immediately before taking such joining time, performing duty in another post.

📖 *Fundamental Rules, FR 26 (substance; condensed clause structure).*

#### ⚠️ TRAP

Extraordinary leave (EOL) does NOT count for increment — EXCEPT where it is granted on medical certificate, or otherwise than on medical certificate for reasons such as inability to join due to civil commotion, or for prosecuting higher technical/scientific studies. Identify the exception, not just the general bar.

### FR 27 — Premature / advance increments

#### 📖 THE RULE — FR 27

Subject to any general or special orders which may be made by the President in this behalf, an authority may grant a premature increment to a Government servant on a time-scale of pay if it has power to create a post in the same cadre on the same scale of pay.

📖 *Fundamental Rules, FR 27.*

#### 🔑 REMEMBER

Sports excellence advance increments under FR 27: National level → 1 increment; International level → 2 increments; subject to a lifetime cap of 5 increments in the entire service.

### FR 29 — Reduction to a lower stage

#### 📖 THE RULE — FR 29

If a Government servant is, as a measure of penalty, reduced to a lower stage in his time-scale, the authority ordering such reduction shall state the period for which it

shall be effective and whether, on restoration, the period of reduction shall operate to postpone future increments and, if so, to what extent.

🔗 *Fundamental Rules, FR 29.*

### FR 35 & FR 36 — Officiating pay and acting promotion

#### 📖 THE RULE — FR 35

The Central Government may fix the pay of an officiating Government servant at an amount less than that admissible under these rules.

🔗 *Fundamental Rules, FR 35.*

🔍 **FREQ** *The cap on officiating pay enhancement is widely cited as 12.5% of basic pay, subject to a monetary ceiling. Treat the exact ceiling as governed by the latest DoE/CPC orders rather than the bare rule, and verify the current figure before relying on it in a fixation. ⚠️*

#### 📖 THE RULE — FR 36

The Central Government may issue general or special orders allowing acting promotions to be made in place of Government servants who are treated as on duty under rule 9(6)(b).

🔗 *Fundamental Rules, FR 36.*

### Allied fixation concepts — bunching and stepping up

#### 🌀 CONCEPT

Two fixation devices flow from FR 22 and are favourite exam points. Bunching protects employees at two or more stages who get bunched into one cell on revision. Stepping up cures the anomaly where a senior, on promotion, ends up drawing less than a junior.

| Device      | Problem it solves                                    | Conditions / effect                                                                                                                                                      |
|-------------|------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Stepping up | Senior drawing less pay than junior after promotion. | Same cadre; identical pay levels; anomaly directly from FR 22(I)(a)(1). Senior stepped up to junior's pay; next increment on completing the required qualifying service. |

|          |                                                                        |                                                                                                |
|----------|------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|
| Bunching | Two or more stages of the old scale falling into one cell on revision. | One additional increment for every two stages bunched, as per the revised-pay orders in force. |
|----------|------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|

*☛ Stepping-up conditions per FR 22(I)(a)(1) and the CCS (RP) Rules, 2016; Dak Guru framing.*

### ☑ SELF-CHECK

- Q1.** What are the two annual increment dates under the 7th-CPC regime, and the minimum qualifying period?
- Q2.** On promotion, what are the two options for the date from which pay may be fixed?
- Q3.** Does extraordinary leave count for increment under FR 26?
- Q4.** State the lifetime ceiling on advance increments for sporting excellence under FR 27.

#### Answers:

- 1 January and 1 July; minimum qualifying period is 6 months (CCS (RP) Rules, 2016, read with FR 22).
- From the date of promotion, or from the Date of Next Increment (DNI).
- No — EOL does not count, except where taken on medical certificate or for the specified reasons (e.g. higher technical/scientific studies) (FR 26(c)).
- Five increments in the entire service (1 for National, 2 for International achievement).

## Chapter V — Additions to Pay (FR 44 to FR 46)

### 🔗 AT A GLANCE

|                |                                                                                    |
|----------------|------------------------------------------------------------------------------------|
| <b>FR 44</b>   | Compensatory allowance must not be a source of profit — only meets actual expense. |
| <b>FR 45-A</b> | Assessment of licence fee for Government-owned residences; flat-rate table.        |
| <b>FR 45-C</b> | Emoluments reckoned for licence-fee assessment under FR 45-A/45-B.                 |
| <b>FR 46</b>   | Conditions for grant and retention of fees and honoraria.                          |

## FR 44 — Compensatory allowance

### THE RULE — FR 44

Subject to the general rule that the amount of a compensatory allowance should be so regulated that the allowance is not on the whole a source of profit to the recipient, the Central Government may grant such allowances to a Government servant on such conditions as it thinks fit.

*🔑 Fundamental Rules, FR 44.*

### REMEMBER

Golden rule of FR 44: a compensatory allowance reimburses, it never rewards — “not, on the whole, a source of profit.”

## FR 45-A — Licence fee for Government residences

### CONCEPT

FR 45-A governs what a Government servant pays for an official residence (a “licence fee,” not rent). The recoverable amount is the lower of a flat rate fixed by the Directorate of Estates by pay level, and a percentage of emoluments. The flat-rate table is revised periodically — the current rates took effect on 1 July 2023.

### THE RULE — FR 45-A (SUBSTANCE)

For the purpose of the assessment of licence fee, the capital cost of a residence owned by Government shall include the cost or value of sanitary, water-supply and electric installations and fittings. The licence fee shall be the standard licence fee or such other rates as the President may from time to time prescribe; in the case of officers within the purview of these rules, the licence fee recoverable shall be governed by the flat rates fixed by the Government from time to time.

*🔑 Fundamental Rules, FR 45-A, read with Rule 74, Central Government General Pool Residential Accommodation Rules, 2017.*

| Pay Level | Type of accommodation | Living area (sq. m) | Flat licence fee / month |
|-----------|-----------------------|---------------------|--------------------------|
| 1         | Type I                | Up to 30            | ₹ 210                    |
| 2 to 5    | Type II               | 26.5 to 50          | ₹ 440                    |
| 6 to 8    | Type III              | 44 to 65            | ₹ 660                    |
| 9 to 11   | Type IV               | 59 to 91.5          | ₹ 880                    |

⚡ Flat rates effective 1 July 2023 — Directorate of Estates OM No. 18011/2/2015-Pol.III dated 10.07.2023. Higher types/levels carry higher slabs in the same OM; rates are ordinarily revised every three years.

### 🕒 WHAT CHANGED

Earlier flat-rate table was effective from 1 July 2020.

Revised w.e.f. 01.07.2023 by Directorate of Estates OM dated 10.07.2023 (issued under Rule 74 of the GPRA Rules, 2017).

Net effect: use the 01.07.2023 slab for current licence-fee recovery; the next routine revision follows the three-year cycle.

## FR 45-C — Emoluments for licence-fee assessment

### 📖 THE RULE — FR 45-C (SUBSTANCE)

For the purposes of rules 45-A and 45-B, “emoluments” means — basic pay, and any other emoluments which may be specially classed as pay, but excludes allowances such as Children Education Allowance, Travelling Allowance and Dress Allowance. In the case of a Government servant under suspension and in receipt of a subsistence grant, emoluments means the amount of the subsistence grant; and in the case of a pensioner, the amount of pension before commutation. Family pension is not reckoned as emoluments.

⚡ *Fundamental Rules, FR 45-C.*

## FR 46 — Fees and honoraria

### 📖 THE RULE — FR 46 (SUBSTANCE)

(a) The Central Government may permit a Government servant, if it be satisfied that this can be done without detriment to his official duties or responsibilities, to perform a specified service or series of services for a private person or body or for a public body and to receive as remuneration therefor, if the service be material, a non-recurring or recurring fee.

(b) The Central Government may grant or permit a Government servant to receive an honorarium as remuneration for work performed which is occasional or intermittent in character and either so laborious or of such special merit as to justify a special reward.

⚡ *Fundamental Rules, FR 46.*

 **FREQ** Inquiry-officer / presenting-officer honoraria in departmental proceedings are fixed by DoP&T orders as a percentage of basic pay (serving officers) or of pension (retired officers), with separate transport and secretarial-assistance components. Treat the exact rates as governed by the latest DoP&T OM and verify before quoting figures. 

### SELF-CHECK

- Q1.** State the governing principle of FR 44 in one phrase.
- Q2.** From which date are the current GPRA flat licence-fee rates effective, and under which authority?
- Q3.** Is the licence fee on a Government residence “rent”? What is the recoverable amount based on?
- Q4.** For a suspended servant, what figure is taken as “emoluments” for licence-fee assessment?

#### Answers:

1. A compensatory allowance must not, on the whole, be a source of profit to the recipient (FR 44).
2. 1 July 2023, under the Directorate of Estates OM dated 10.07.2023 (issued under Rule 74, GPRA Rules 2017).
3. No — it is a licence fee, recoverable as the lower of the flat rate by pay level and a percentage of emoluments (FR 45-A).
4. The amount of the subsistence grant (FR 45-C).

## Chapter VI — Combination of Appointments (FR 49)

### AT A GLANCE

|                          |                                                                                                      |
|--------------------------|------------------------------------------------------------------------------------------------------|
| <b>FR 49</b>             | Government may require one servant to hold full additional charge or current charge of another post. |
| <b>Additional charge</b> | Aggregate of pay + additional pay is capped; additional pay admissible for full charge.              |
| <b>Current charge</b>    | Of routine duties — no additional pay is admissible.                                                 |

### FR 49 — Holding additional / current charge

#### THE RULE — FR 49 (SUBSTANCE)

The Central Government may appoint a Government servant already holding a post in a substantive or officiating capacity to officiate, as a temporary measure, in one or

more of other independent posts at one time under the Government. In such cases his pay is regulated as follows —

- (i) where a Government servant is formally appointed to hold full charge of the duties of a higher post in addition to his ordinary duties, and the additional duties are not of a purely routine character, additional pay may be allowed, subject to the prescribed ceiling on the aggregate of pay and additional pay;
- (ii) where a Government servant is appointed to hold current charge of the routine duties of another post, no additional pay shall be admissible irrespective of the duration of the arrangement.

*🔗 Fundamental Rules, FR 49 (substance; condensed clause structure).*

#### ⚠️ TRAP

The decisive line is full charge versus current charge: additional pay attaches to full charge of substantive duties; holding merely current charge of routine duties carries NO additional pay, however long it lasts. Where additional charge exceeds three months, the concurrence of the competent authority is required.

#### ✅ SELF-CHECK

- Q1.** Under FR 49, when is additional pay admissible — full charge or current charge?
- Q2.** Does current charge of routine duties carry additional pay regardless of duration?
- Q3.** Beyond what period of additional charge is higher concurrence ordinarily required?

#### Answers:

- 1. On formal appointment to hold full charge of the duties of a higher post (not of a purely routine character) (FR 49(i)).
- 2. No — current charge of routine duties carries no additional pay irrespective of the period (FR 49(ii)).
- 3. Beyond three months, the concurrence of the competent authority is required.

## Chapter VII — Deputation out of India (FR 50, 51)

### 🔗 AT A GLANCE

|              |                                                                              |
|--------------|------------------------------------------------------------------------------|
| <b>FR 50</b> | No deputation out of India without prior approval of the Central Government. |
| <b>FR 51</b> | Pay during deputation; eligibility and tenure of deputation/foreign service. |

|               |                                                          |
|---------------|----------------------------------------------------------|
| <b>Tenure</b> | Max 5 years in one stretch; cooling-off varies by level. |
|---------------|----------------------------------------------------------|

## FR 50 & FR 51 — Approval, pay and tenure

### THE RULE — FR 50

No deputation of a Government servant out of India shall be sanctioned without the previous approval of the Central Government.

*🔗 Fundamental Rules, FR 50.*

### THE RULE — FR 51

When a Government servant is, with proper sanction, temporarily deputed for duty out of India, he may be permitted to draw, during the period of deputation, the same pay which he would have drawn had he remained on duty in India; the Central Government may make such other arrangements as to his pay as it thinks fit.

*🔗 Fundamental Rules, FR 51.*

| Tenure / cooling-off                     | Position                                              | Authority                    |
|------------------------------------------|-------------------------------------------------------|------------------------------|
| Maximum in one stretch                   | 5 years.                                              | DoP&T deputation guidelines. |
| Maximum in entire service                | Ordinarily 7 years (extendable per delegated powers). | DoP&T deputation guidelines. |
| Cooling-off — JS level & below           | 3 years.                                              | DoP&T guidelines.            |
| Cooling-off — Additional Secretary level | 1 year.                                               | DoP&T guidelines.            |
| Cooling-off — Secretary level            | Nil.                                                  | DoP&T guidelines.            |

*🔗 Tenure/cooling-off norms per the consolidated DoP&T deputation/foreign-service guidelines (re-issued vide OM dated 28.03.2024); verify the latest OM for any change before relying on figures.*

 **FREQ** Eligibility for foreign service ordinarily begins after completion of about 9 years' service with clear vigilance status, and the officer should not have dealt with the borrowing organisation in the preceding period — a recurring objective point.

## Chapter VIII — Dismissal, Removal and Suspension (FR 52 to FR 55)

| 🔑 AT A GLANCE       |                                                                           |
|---------------------|---------------------------------------------------------------------------|
| FR 52               | Pay and allowances cease from the date of dismissal or removal.           |
| FR 53               | Subsistence allowance during suspension and the deductions from it.       |
| FR 54 / 54-A / 54-B | Pay regulation on reinstatement (by authority, by court, on death/leave). |
| FR 55               | Leave may not be granted to a servant under suspension.                   |
| 90-day rule         | Charge-sheet must issue within 90 days or suspension lapses (post-2016).  |

### FR 52 — Cessation of pay on dismissal/removal

#### 📖 THE RULE — FR 52

The pay and allowances of a Government servant who is dismissed or removed from service cease from the date of such dismissal or removal.

🔗 *Fundamental Rules, FR 52.*

### FR 53 — Subsistence allowance during suspension

#### 🌀 CONCEPT

A suspended servant is not paid full pay but a subsistence allowance — half of the leave salary he would have drawn on half-pay leave, plus dearness allowance. The rate can be increased or decreased after the first three months depending on whether the delay in the proceedings is, or is not, attributable to the servant. Payment is conditional on a certificate that he is not engaged in any other employment.

#### 📖 THE RULE — FR 53(1)

A Government servant under suspension, or deemed to have been placed under suspension by an order of the appointing authority, shall be entitled to the following payments, namely —

- (i) a subsistence allowance at an amount equal to the leave salary which the Government servant would have drawn if he had been on leave on half average

pay or on half pay, and in addition, dearness allowance, if admissible, on the basis of such leave salary;

(ii) where the period of suspension exceeds three months, the authority which made or is deemed to have made the order of suspension may direct that the subsistence allowance be increased by a suitable amount not exceeding 50 per cent of the subsistence allowance admissible during the period of the first three months, if, in the opinion of the said authority, the period of suspension has been prolonged for reasons to be recorded in writing, not directly attributable to the Government servant;

(iii) where such period exceeds three months, the subsistence allowance may be reduced by a suitable amount, not exceeding 50 per cent, if the period of suspension has been prolonged due to reasons directly attributable to the Government servant.

🔑 *Fundamental Rules, FR 53(1).*

#### 📄 THE RULE — FR 53(2)

No payment under sub-rule (1) shall be made unless the Government servant furnishes a certificate that he is not engaged in any other employment, business, profession or vocation.

🔑 *Fundamental Rules, FR 53(2).*

#### 🔑 REMEMBER

Subsistence allowance starts at HALF (half-pay leave salary + DA). After 3 months it can move  $\pm 50\%$  — UP if the delay is NOT the servant's fault, DOWN if it IS.

| Recovery from subsistence allowance | Items                                                                                                                                                |
|-------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------|
| Compulsory                          | Income tax; house rent and allied charges (electricity, water, furniture); repayment of loans/advances; CGHS contribution; CGEGIS 1980 contribution. |
| Optional (with written consent)     | PLI premia; dues to co-operative societies; refund of advances taken from GPF.                                                                       |
| Not to be recovered                 | Subscription to GPF; amounts due on court attachment; recovery of Government loss for which the servant is responsible.                              |

🔑 *Classification per the Government Decisions under FR 53; Dak Guru tabulation.*

## FR 54 / 54-A / 54-B — Reinstatement and regularisation

### THE RULE — FR 54(1)

When a Government servant who has been dismissed, removed or compulsorily retired is reinstated as a result of appeal or review, or would have been so reinstated but for his retirement on superannuation while under suspension or otherwise, the authority competent to order reinstatement shall consider and make a specific order — (a) regarding the pay and allowances to be paid to the Government servant for the period of his absence from duty, and (b) whether or not the said period shall be treated as a period spent on duty.

*FR Fundamental Rules, FR 54(1).*

### THE RULE — FR 54-A(1)

Where the dismissal, removal or compulsory retirement of a Government servant is set aside by a court of law and such Government servant is reinstated, the regulation of pay and allowances for the period of absence and the question whether that period shall be treated as duty shall be governed by the orders made under this rule, having regard to the grounds on which the court set aside the order.

*FR Fundamental Rules, FR 54-A(1).*

### THE RULE — FR 54-B (SUBSTANCE)

Where a Government servant who has been suspended is reinstated, or would have been so reinstated but for his death or retirement, the competent authority may, within the prescribed limits, order that the period of suspension be converted into leave of the kind due and admissible — extraordinary leave up to three months in the case of a temporary Government servant, and leave of any kind up to five years in the case of a permanent or quasi-permanent Government servant; a higher authority may sanction such conversion without limit.

*FR Fundamental Rules, FR 54-B (substance).*

### TRAP

Where, on conclusion, only a MINOR penalty is imposed (or the servant is fully exonerated), the period of suspension is ordinarily treated as duty for all purposes. Erroneous detention in custody, where the competent authority concludes the servant was not at fault, is likewise treated as duty.

## FR 55 — No leave during suspension

### THE RULE — FR 55

Leave may not be granted to a Government servant under suspension.

*🔗 Fundamental Rules, FR 55.*

## Suspension hotspot — the 90-day charge-sheet rule

### CONCEPT

This is the single most-tested suspension point. Following the Supreme Court's decision in *Ajay Kumar Choudhary v. Union of India* (2015), an order of suspension cannot continue indefinitely: the charge memorandum / charge-sheet must be served within 90 days, failing which the suspension lapses unless extended by a speaking order of the competent authority before the 90 days expire.

### WHAT CHANGED

Old position: suspension could run while the charge-sheet was awaited, with no hard outer time-limit (the loose 270-day / 2-year framing).

*Ajay Kumar Choudhary v. UoI* (2015) 7 SCC 291; given effect by DoP&T instructions — OM dated 23.08.2016 read with G.S.R. amending the CCS (CCA) Rules.

Net effect: deliver the charge-sheet within 90 days of suspension, or pass a reasoned extension order before the 90 days end — otherwise the suspension lapses.

**⚠️ TRAP** *Do not confuse the 90-day charge-sheet lapse rule with the 48-hour custody rule for deemed suspension. The 90-day rule is about how long a suspension may continue without a charge-sheet; the 48-hour rule is about when detention triggers deemed suspension.*

### SELF-CHECK

- Q1.** At what rate does subsistence allowance begin under FR 53(1)?
- Q2.** After three months, by how much, and in which direction, may subsistence allowance be varied?
- Q3.** Within how many days must a charge-sheet be served for a suspension to continue, and what is the source of this rule?
- Q4.** May leave be granted to a Government servant under suspension?

**Answers:**

1. Equal to the leave salary on half-pay leave, plus dearness allowance on that basis (FR 53(1)(i)).
2. By up to 50% — increased if the delay is not attributable to the servant, reduced if it is (FR 53(1)(ii) and (iii)).
3. Within 90 days; from *Ajay Kumar Choudhary v. UoI* (2015), given effect by DoP&T OM dated 23.08.2016 amending the CCS (CCA) Rules.
4. No — leave may not be granted to a servant under suspension (FR 55).

## Chapter IX — Retirement (FR 56)

| 🔗 AT A GLANCE     |                                                                                     |
|-------------------|-------------------------------------------------------------------------------------|
| FR 56(a)          | Superannuation on the afternoon of the last day of the month of attaining 60 years. |
| FR 56(j)          | Premature retirement (Group A & B) in public interest at 50/55 years.               |
| FR 56(l)          | Premature retirement of Group 'C' in public interest.                               |
| FR 56(k)/(m)      | Voluntary retirement on 3 months' notice.                                           |
| Periodical review | Read now with Rule 42 of the CCS (Pension) Rules, 2021.                             |

### FR 56(a) — Age of superannuation

#### 📖 THE RULE — FR 56(A)

Except as otherwise provided in this rule, every Government servant shall retire from service on the afternoon of the last day of the month in which he attains the age of sixty years. A Government servant whose date of birth is the first of a month shall retire from service on the afternoon of the last day of the preceding month on attaining the age of sixty years.

🔗 *Fundamental Rules, FR 56(a).*

⚠️ **TRAP** *Date of birth on the 1st of a month → the servant retires on the afternoon of the LAST DAY OF THE PRECEDING MONTH. A favourite calculation trap.*

### FR 56(j) & 56(l) — Premature retirement in public interest

#### 🌀 CONCEPT

FR 56(j)/(l) give the appropriate authority an absolute right to retire a Government servant in the public interest — it is not a penalty and attracts full pensionary benefits.

The thresholds are based on age and entry age; cases are reviewed periodically by committees.

#### THE RULE — FR 56(j)

Notwithstanding anything contained in this rule, the Appropriate Authority shall, if it is of the opinion that it is in the public interest so to do, have the absolute right to retire any Government servant by giving him notice of not less than three months in writing or three months' pay and allowances in lieu of such notice —

- (i) if he is, in Group 'A' or Group 'B' service or post in a substantive, quasi-permanent or temporary capacity and had entered Government service before attaining the age of thirty-five years, after he has attained the age of fifty years;
- (ii) in any other case after he has attained the age of fifty-five years.

*🔗 Fundamental Rules, FR 56(j).*

#### THE RULE — FR 56(l)

Notwithstanding anything contained in clause (j), the Appropriate Authority shall, if it is of the opinion that it is in the public interest so to do, have the absolute right to retire a Government servant in Group 'C' service or post who is not governed by any pension rules, after he has completed thirty years' service, by giving him notice of not less than three months in writing or three months' pay and allowances in lieu of such notice.

*🔗 Fundamental Rules, FR 56(l).*

#### WHAT CHANGED

Periodical review of these cases was earlier referenced against Rule 48 of the CCS (Pension) Rules, 1972.

Rule 48 of the 1972 Rules now stands revised as Rule 42 of the CCS (Pension) Rules, 2021 — confirmed by DoP&T OM No. 25013/01/2024-Pers.Policy A-IV dated 27.06.2024.

Net effect: cite FR 56(j)/(l) read with Rule 42 of the CCS (Pension) Rules, 2021 for the public-interest retirement / periodical-review framework.

## REMEMBER

Premature retirement thresholds: Group A/B entering before 35 → reviewable at 50; everyone else → at 55; Group 'C' (no pension rules) → after 30 years. Three months' notice or pay in lieu, throughout.

★ **PYQ** FR 56(j) is “not a penalty” — therefore full retirement gratuity and pension are payable. The objective frequently pairs “absolute right ... in public interest” with “three months’ notice or pay in lieu.”

## FR 56(k) & 56(m) — Voluntary retirement

### THE RULE — FR 56(k) (SUBSTANCE)

Any Government servant may, by giving notice of not less than three months in writing to the Appropriate Authority, retire from service after he has attained the age of fifty years (in the case of Group 'A' and 'B') or fifty-five years (in other cases); provided that it shall be open to the Appropriate Authority to withhold permission to a Government servant who is under suspension, or against whom a charge-sheet has been issued and disciplinary proceedings are pending, or against whom judicial proceedings on charges amounting to grave misconduct are pending.

🔗 *Fundamental Rules, FR 56(k) (substance).*

| Periodical-review timetable — quarter of review | Employees attaining 50/55 or 30 yrs in |
|-------------------------------------------------|----------------------------------------|
| January to March                                | July to September of the same year.    |
| April to June                                   | October to December of the same year.  |
| July to September                               | January to March of the next year.     |
| October to December                             | April to June of the next year.        |

🔗 *Review schedule per DoP&T premature-retirement guidelines (consolidated OM dated 28.08.2020), read with Rule 42 of the CCS (Pension) Rules, 2021.*

## SELF-CHECK

- Q1.** When does a servant with date of birth on 1 March retire?
- Q2.** At what age is a Group A/B officer (who entered service before 35) reviewable for premature retirement under FR 56(j)?
- Q3.** Is premature retirement under FR 56(j) a penalty? What follows for gratuity/pension?

**Q4.** Rule 48 of the CCS (Pension) Rules, 1972 now corresponds to which rule of which 2021 Rules?

**Answers:**

1. On the afternoon of the last day of February (the preceding month) — FR 56(a) proviso.
2. After attaining 50 years (those in other cases: 55 years) — FR 56(j)(i)/(ii).
3. No, it is not a penalty; therefore full retirement gratuity and pension are payable.
4. Rule 42 of the CCS (Pension) Rules, 2021 (DoP&T OM dated 27.06.2024).

## Chapter XI — Joining Time (FR 105 to FR 108)

| 🔑 AT A GLANCE |                                                                                  |
|---------------|----------------------------------------------------------------------------------|
| Joining time  | Time allowed to join a new post or travel on transfer.                           |
| FR 108        | Overstaying joining time — no pay/leave salary; may attract disciplinary action. |
| Detail        | The working rules are in the CCS (Joining Time) Rules, 1979 (Part C).            |

### FR 108 — Consequences of overstaying joining time

#### 📖 THE RULE — FR 108

A Government servant who does not join his post within his joining time is entitled to no pay or leave salary after the end of the joining time. Wilful absence from duty after the expiry of joining time may be treated as misbehaviour for the purpose of rule 15.

🔗 *Fundamental Rules, FR 108.*

⚠️ **TRAP** *Overstaying joining time is not merely a pay loss — wilful overstay may be treated as misbehaviour under FR 15, exposing the servant to transfer/disciplinary consequences.*

## Chapter XII — Foreign Service (FR 110 to FR 127)

| 🔑 AT A GLANCE |                                                                                     |
|---------------|-------------------------------------------------------------------------------------|
| FR 110        | No transfer to foreign service against the servant's will; sanction needed.         |
| FR 113        | No change in cadre during foreign service.                                          |
| FR 114        | Servant draws pay from the foreign employer from the date he takes up foreign duty. |

|                   |                                                                                   |
|-------------------|-----------------------------------------------------------------------------------|
| <b>FR 115/116</b> | Who bears pension and leave-salary contributions, and at what rates.              |
| <b>FR 120/121</b> | Foreign service counts as duty if contributions are paid; bar on foreign pension. |
| <b>FR 125/126</b> | Reversion date and cessation of foreign pay.                                      |

### **CONCEPT**

Foreign service is service in which a Government servant draws pay, with Government sanction, from a source other than the Consolidated Fund of India. The servant keeps his cadre and his claim to pension, but the cost of his pension and leave salary must be kept up through contributions — FR 115 fixes who pays, and FR 116 fixes the rates.

## **FR 110 — Transfer to foreign service**

### **THE RULE — FR 110**

- (a) No Government servant may be transferred to foreign service against his will.
- (b) A transfer to foreign service outside India and in India may be sanctioned by the Central Government, subject to any restrictions which the President may by general order impose.

 *Fundamental Rules, FR 110.*

 **FREQ** *For the purposes of the foreign-service rules, Nepal is treated as outside India — a recurring objective point.*

## **FR 113 & FR 114 — Cadre and pay from foreign employer**

### **THE RULE — FR 113**

A Government servant transferred to foreign service remains in the cadre or cadres in which he was included in a substantive or officiating capacity immediately before his transfer, and may be given substantive or officiating promotion therein as the authority competent to order such promotion may decide.

 *Fundamental Rules, FR 113.*

### **THE RULE — FR 114(A)**

A Government servant in foreign service will draw pay from the foreign employer from the date on which he relinquishes charge of his post in Government service.

🔑 *Fundamental Rules, FR 114(a).*

## FR 115 & FR 116 — Pension and leave-salary contributions

### 📖 THE RULE — FR 115 (SUBSTANCE)

While a Government servant is in foreign service, contributions towards the cost of his pension must be paid to the Consolidated Fund of India on his behalf. Contributions towards leave salary are payable as prescribed; the contributions, and the rates at which they are paid, are fixed by general order of the President.

🔑 *Fundamental Rules, FR 115 (substance).*

### 📖 THE RULE — FR 116 — RATES OF CONTRIBUTION (IN FORCE FROM 1 APRIL 2019)

NPS-covered employee: 28% of (Basic Pay + DA) — employer share 14%, employee share 10%, and 4% towards gratuity.

Old-pension (OPS) employee: 18% of (Basic Pay + DA) — 14% towards pension plus 4% towards gratuity.

Leave-salary contribution: 11% of (Basic Pay + DA), for all Government servants in foreign service.

🔑 *Fundamental Rules, FR 116, read with the rates notified w.e.f. 01.04.2019 (Department of Expenditure). Verify the latest DoE order before applying.*

### 🔑 REMEMBER

Foreign-service contribution shorthand: NPS = 14 + 10 + 4 = 28%; OPS = 14 + 4 = 18%; Leave salary = 11% — all on (Basic Pay + DA).

## FR 120, 121, 125 & 126 — Counting, foreign pension, reversion

### 📖 THE RULE — FR 120 (SUBSTANCE)

If the contribution maintaining his claim to pension is paid, foreign service counts as duty in Government. Neither the Government servant nor the foreign employer has any right of property in a contribution paid, and no claim for refund can be entertained.

🔑 *Fundamental Rules, FR 120 (substance).*

#### THE RULE — FR 121

A Government servant transferred to foreign service may not, without the sanction of the Central Government, accept a pension or gratuity from his foreign employer in respect of such service.

*📖 Fundamental Rules, FR 121.*

#### THE RULE — FR 125 & 126

A Government servant reverts from foreign service to Government service on the date on which he takes charge of his post in Government service.

When a Government servant reverts from foreign service to Government service, his pay will cease to be paid by the foreign employer, and his contributions will be discontinued, from the date of reversion.

*📖 Fundamental Rules, FR 125 and FR 126.*

#### SELF-CHECK

- Q1.** May a servant be transferred to foreign service against his will?
- Q2.** From which date does a servant in foreign service draw pay from the foreign employer?
- Q3.** State the leave-salary contribution rate in foreign service and its base.
- Q4.** Can a servant accept a pension from the foreign employer? On what condition?

#### Answers:

1. No — FR 110(a) bars transfer to foreign service against the servant's will.
2. From the date on which he relinquishes charge of his Government post (FR 114(a)).
3. 11% of (Basic Pay + DA), for all Government servants (FR 116, w.e.f. 01.04.2019).
4. Only with the prior sanction of the Central Government (FR 121).

## PART B — SUPPLEMENTARY RULES (SR)

The Supplementary Rules are made by the President under FR 6 to give effect to the Fundamental Rules. For Paper III, the high-yield SRs are those on the medical fitness certificate, acceptance and crediting of fees, the service book, and foreign-service contributions and travelling allowance.

### Medical Fitness, Fees and Records

|  AT A GLANCE |                                                                                    |
|-----------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------|
| SR 4 / 4-A                                                                                    | Medical fitness certificate on first entry; categories exempt from re-examination. |
| SR 11 / 12                                                                                    | Acceptance of fees, and the share of fees to be credited to Government.            |
| SR 196-203                                                                                    | Service record — who keeps it, how it is maintained and attested.                  |
| SR 307 / 307-A                                                                                | Foreign service — interest on overdue contributions; travelling allowance.         |

### SR 4 & SR 4-A — Medical fitness certificate

#### THE RULE — SR 4 (SUBSTANCE)

The medical certificate of fitness for first entry into Government service shall be signed — (a) by a Medical Board in the case of a Gazetted Government servant; and (b) by a Civil Surgeon or a District Medical Officer or a Medical Officer of equivalent status in the case of a non-gazetted Government servant.

*Supplementary Rules, SR 4 (substance).*

#### THE RULE — SR 4-A — EXEMPTIONS (SUBSTANCE)

A medical certificate of fitness need not be produced at the time of joining by —

- (1) a Government servant recruited through a competitive examination who has already undergone the prescribed medical examination;
- (2) a Government servant appointed in a temporary vacancy for a period not exceeding three months;

- (3) a temporary Government servant already medically examined in one office, on transfer to another office without break;
- (4) a retired Government servant re-employed immediately after retirement.

🔗 *Supplementary Rules, SR 4-A (substance).*

## SR 11 & SR 12 — Acceptance and crediting of fees

### 📖 THE RULE — SR 11

No Government servant may undertake work for any private or public body or any private person, or accept any fee therefor, without the sanction of the competent authority.

🔗 *Supplementary Rules, SR 11.*

### 📖 THE RULE — SR 12 (SUBSTANCE)

Unless the President by special order otherwise directs, one-third of any fees in excess of five hundred rupees or, if a recurring fee, of five hundred rupees a year, paid to a Government servant, shall be credited to the Consolidated Fund of India.

🔗 *Supplementary Rules, SR 12 (substance).* ⚠️ *The exemption threshold in SR 12 has varied over time; verify the figure currently notified before applying it to a specific case.*

### ⚠️ TRAP

SR 12 credits to Government only the excess over the exempted slab, and only one-third of that excess — not one-third of the whole fee. Watch the wording: the threshold and the fraction are tested together, and the threshold figure must be checked against the order in force.

## SR 196 to SR 203 — Record of service (service book)

### 🕒 CONCEPT

The service book is the official life-record of a Government servant. SR 196–203 fix who keeps it, how each event is recorded and attested, and the duty of annual inspection. Modern DoP&T decisions require it to be maintained in duplicate, with the second copy shown to the servant each year.

### 📖 THE RULE — SR 198 (SUBSTANCE)

A service book shall be maintained for every non-gazetted Government servant from the date of his first appointment to Government service. Every step in his official life

must be recorded in the service book, and each entry must be attested by the Head of Office or other authorised officer.

☞ *Supplementary Rules, SR 198 and SR 199 (substance).*

| Service-book decision | Position                                                                                                 |
|-----------------------|----------------------------------------------------------------------------------------------------------|
| Number of copies      | Maintained in duplicate; first copy retained by the Head of Office, second copy given to the servant.    |
| Annual updating       | In January each year the servant hands over his copy for updating; the office returns it within 30 days. |
| Lost copy             | The servant's copy, if lost by him, is replaced on payment of the prescribed fee.                        |
| Qualifying service    | Verified and communicated after 18 years' service, and again 5 years before retirement.                  |

☞ *Government Decisions under SR 198–202; figures per the relevant DoP&T orders — verify the current replacement-fee amount before quoting.*

### SR 307 & SR 307-A — Foreign-service interest and travelling allowance

#### 📖 THE RULE — SR 307 (SUBSTANCE)

Contributions for leave salary or pension due in respect of a Government servant on foreign service may be paid annually within fourteen days from the end of each financial year, or, in the case of his reversion or the end of foreign service, within fourteen days thereof; if payment is not made within the prescribed period, interest must be paid to Government on the unpaid contribution at the rate prescribed.

☞ *Supplementary Rules, SR 307 (substance).*

#### 📖 THE RULE — SR 307-A — DEPUTATION (DUTY) ALLOWANCE (SUBSTANCE)

Where a Government servant on transfer to foreign service is granted a deputation (duty) allowance, it shall be admissible at —

- (i) 5% of basic pay, subject to a maximum of ₹ 5,625 per month, where there is no change of station; and
- (ii) 10% of basic pay, subject to a maximum of ₹ 11,250 per month, where the deputation involves a change of station.

☞ *Supplementary Rules, SR 307-A, read with the 7th-CPC deputation (duty) allowance ceilings (DoP&T OM No. 2/6/2016-Estt.(Pay-II) dated 07.02.2019).*

### 🕒 WHAT CHANGED

Earlier ceilings were ₹ 4,500 (same station) and ₹ 9,000 (with change of station).

The 7th CPC enhanced the ceilings by 2.25 times — to ₹ 5,625 and ₹ 11,250 — vide DoP&T OM dated 07.02.2019; the position is restated in the consolidated deputation/foreign-service guidelines re-issued vide OM dated 28.03.2024.

Net effect: use ₹ 5,625 (same station) and ₹ 11,250 (change of station) as the current monthly ceilings for deputation (duty) allowance.

### 🔑 REMEMBER

Deputation (Duty) Allowance ceilings: SAME station → 5% of basic pay, max ₹ 5,625; CHANGE of station → 10% of basic pay, max ₹ 11,250 (7th CPC, w.e.f. 07.02.2019).

### ✅ SELF-CHECK

- Q1.** Who signs the medical fitness certificate for a Gazetted entrant under SR 4?
- Q2.** Under SR 12, what proportion of the fee, above the exempted slab, is credited to Government?
- Q3.** In how many copies is the service book maintained, and who holds each?
- Q4.** State the current ceiling on deputation (duty) allowance where the deputation involves a change of station.

#### Answers:

1. A Medical Board (SR 4(a)).
2. One-third of the excess over the exempted threshold — not one-third of the whole fee (SR 12); verify the current threshold figure.
3. In duplicate — the first copy with the Head of Office, the second with the servant (Govt. Decisions under SR 198).
4. 10% of basic pay, subject to a maximum of ₹ 11,250 per month (SR 307-A; 7th CPC, OM dated 07.02.2019).

## PART C – CCS (JOINING TIME) RULES, 1979

### AT A GLANCE

|                     |                                                                              |
|---------------------|------------------------------------------------------------------------------|
| <b>Rule 1–2</b>     | Title; in force from 19 May 1979.                                            |
| <b>Rule 4</b>       | No joining time for temporary transfer up to 180 days — only actual transit. |
| <b>Rule 5</b>       | Joining time by distance; holidays following it extend it.                   |
| <b>Rule 6 / 8</b>   | Joining time at the same station vs change of station.                       |
| <b>Rule 5(4)/10</b> | Maximum joining time and its extension.                                      |
| <b>Rule 12 / 13</b> | Combination with leave; joining time treated as duty (pay).                  |

### CONCEPT

These rules put working flesh on the FR concept of joining time. The two practical anchors are: (i) no joining time for short temporary transfers (up to 180 days) — only actual transit; and (ii) a distance-based scale of joining time when the transfer involves a change of station. Joining time is treated as duty, so it carries joining-time pay.

### Rules 1 to 4 — Title, commencement, grant and short transfers

#### THE RULE — RULES 1, 2, 3 & 4 (SUBSTANCE)

These rules may be called the Central Civil Services (Joining Time) Rules, 1979, and shall come into force on 19th May, 1979.

Joining time shall be granted to a Government servant on transfer in the public interest to enable him to join the new post, either at the same station or at a new station.

No joining time is admissible in the case of a temporary transfer for a period not exceeding one hundred and eighty days; only the actual transit time, as on tour, is allowed.

 CCS (Joining Time) Rules, 1979, Rules 1–4 (substance).

 **TRAP** Temporary transfer up to 180 days → NO joining time, only actual transit (treated as on tour). Joining time proper is for transfers in the public interest, typically involving a change of station.

## Rules 5 & 8 — Quantum of joining time

### THE RULE — RULES 5 & 8 (SUBSTANCE)

Where a Government servant joins a new post at the same station, or where the transfer does not involve a change of residence, only one day's joining time is allowed.

Where the transfer involves a change of station, joining time is admissible with reference to the distance between the old and the new headquarters, as in the table below. When holiday(s) follow joining time, the joining time is deemed to be extended to cover such holiday(s).

*CCS (Joining Time) Rules, 1979, Rules 5 and 8 (substance).*

| Distance between old and new station  | Joining time admissible                | Where road journey > 200 km |
|---------------------------------------|----------------------------------------|-----------------------------|
| 1,000 km or less                      | 10 days                                | 12 days                     |
| More than 1,000 km and up to 2,000 km | 12 days                                | 15 days                     |
| More than 2,000 km                    | 15 days (12 days if journey is by air) | 15 days                     |

*CCS (Joining Time) Rules, 1979, distance-based joining-time table (Rule 5).*

### REMEMBER

Joining-time ladder:  $\leq 1000$  km  $\rightarrow$  10 days; 1000–2000 km  $\rightarrow$  12 days;  $> 2000$  km  $\rightarrow$  15 days (air: 12). Same station / no change of residence  $\rightarrow$  just 1 day.

## Rules 10, 12 & 13 — Extension, combination, and pay

### THE RULE — RULES 10, 12 & 13 (SUBSTANCE)

Joining time may be extended by the Head of Department up to thirty days, and beyond thirty days by the competent higher authority.

Joining time may be combined with vacation and/or regular leave of any kind or duration, except casual leave.

A Government servant on joining time shall be treated as on duty during that period and shall be entitled to joining-time pay equal to the pay drawn before relinquishment of charge of the old post.

*CCS (Joining Time) Rules, 1979, Rules 10, 12 and 13 (substance).*

**⚠ TRAP**

Joining time can be combined with leave of any kind EXCEPT casual leave. And joining time is duty — so it carries joining-time pay; it is not an unpaid gap.

**☑ SELF-CHECK**

- Q1.** Is joining time admissible for a temporary transfer of 150 days?
- Q2.** How much joining time is allowed for a change of station 1,500 km away (rail)?
- Q3.** With which single kind of leave can joining time NOT be combined?
- Q4.** Is a Government servant on joining time treated as on duty?

**Answers:**

1. No — for a temporary transfer up to 180 days only actual transit is allowed, not joining time (Rule 4).
2. 12 days (distance more than 1,000 and up to 2,000 km) — Rule 5 table.
3. Casual leave (Rule 12).
4. Yes — he is treated as on duty and draws joining-time pay (Rule 13).

